WELLEX

wellex.io — Calon Wealth Management Ltd

LEGAL DOCUMENT

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Terms of Service

Calon Wealth Management Ltd

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wellex.io

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1. DEFINITIONS AND INTERPRETATION

In these Terms of Service, unless the context otherwise requires, the following definitions apply:

- **"Company," "we," "us," "our"** — Calon Wealth Management Ltd, registered in England and Wales under Company Number 14813653.
- **"Platform"** — the Wellex ecosystem at wellex.io, including mobile application, web interface, wearable device and DeFi protocols.
- **"User," "you"** — any individual accessing, registering with, or using the Wellex Platform.
- **"Wellex Band"** — the proprietary wellness wearable device provided under subscription.
- **"WVI"** — Wellex Vitality Index, a proprietary algorithmic score from 0 to 100 derived from biometric data.
- **"WellexVault"** — ERC-4626 compliant smart contract infrastructure for DeFi yield generation.

- **"Yield"** — variable returns generated through DeFi protocols, ranging from 0% to 20% per month depending on WVI and market conditions.
- **"Subscription"** — monthly plan at $19/month providing Platform access and Wellex Band.
- **"Partner Program"** — multi-level referral and commission program operated by the Company.
- **"Living NFT"** — soulbound non-fungible token representing the user's WVI status.

2. ACCEPTANCE OF TERMS

By accessing or using the Wellex Platform, creating an account, or clicking "I Agree," you acknowledge that you have read, understood, and agree to be bound by these Terms of Service and all applicable policies incorporated herein by reference, including our Privacy Policy, Cookie Policy, KYC/AML Policy, and Risk Disclaimer.

> ⓘ These Terms constitute a legally binding agreement between you and Calon Wealth Management Ltd. Please read them carefully before using our services.

3. ELIGIBILITY

To use the Wellex Platform, you must:

- Be at least 18 years of age (or the age of majority in your jurisdiction);
- Have the legal capacity to enter into a binding contract;
- Not be a resident of a jurisdiction where DeFi services or cryptocurrency are prohibited;
- Not be on any government sanctions list (OFAC, EU, UN);
- Successfully complete the KYC/AML verification process.

> 🚫 The Platform is not available to residents of the United States, North Korea, Iran, Cuba, Syria, or other jurisdictions where applicable financial regulations prohibit such services.

4. DESCRIPTION OF SERVICES

4.1 Wellex Wellness Platform

The Wellex Platform provides an integrated wellness and DeFi yield ecosystem including biometric monitoring via the Wellex Band (PPG, ECG, SpO2, EDA sensors); AI-powered WVI calculation; DeFi yield generation through WellexVault; Living NFT wellness representation; community challenges and leaderboards; and multi-level Partner Program.

4.2 No Financial Advice

Nothing on the Platform constitutes financial, investment, legal, or tax advice. All yield figures are historical or projected estimates and do not guarantee future returns.

5. ACCOUNT REGISTRATION AND SECURITY

Users must provide accurate, complete, and current information. You are responsible for maintaining the confidentiality of your credentials; all activity under your account; immediately notifying us of any unauthorized access at **security@wellex.io**; using two-factor authentication; and keeping connected wallet addresses secure.

6. SUBSCRIPTION AND FEES

6.1 Subscription Plans

PLAN	PRICE	INCLUDES
Monthly Subscription	$19.00 / month	Wellex Band, AI Coach, WVI tracking, Platform access

Annual Pass	$179 / year	22% discount vs. monthly; all Monthly features
Reinvest Activation	$129 one-time	Auto-reinvestment feature activation

6.2 Yield Performance Fee

The Company charges a performance fee of **15% of gross yield** generated through WellexVault. This fee is automatically deducted before yield is credited to the user's account.

6.3 Refund Policy

Subscription fees are non-refundable except where required by applicable law. The Wellex Band becomes the property of the subscriber after 3 consecutive months of active subscription.

7. WELLEX BAND (WEARABLE DEVICE)

The Wellex Band is provided as part of the subscription service. Users agree not to tamper with, reverse engineer, or circumvent the Trusted Execution Environment (TEE) anti-cheat system.

> 🚫 Any attempt to spoof, falsify, or manipulate biometric data to artificially inflate WVI scores constitutes fraud and will result in immediate account termination and forfeiture of all yield.

8. WVI — WELLEX VITALITY INDEX

The WVI is calculated using three weighted components:

COMPONENT	WEIGHT	DATA SOURCES
Emotional State	35%	Heart rate variability, EDA, sleep patterns
Recovery	35%	Sleep quality, SpO2, resting heart rate
Physical Activity	30%	Movement data, exercise sessions, step count

9. DEFI YIELD PROTOCOL

Yield is generated through four DeFi strategies deployed via WellexVault: DeFi Lending (Aave v3, Compound, Morpho); RWA/US Treasuries (Ondo, Maple, Superstate); Prediction Market Liquidity Provision; and Arbitrage (funding rate, CEX/DEX spread). Minimum deposit: $50 (USDC/USDT). Withdrawals processed within 5 business days.

10. PARTNER PROGRAM

The Wellex Partner Program consists of 10 ranks (Explorer through Legend) with up to 10 levels of depth. Partners earn commissions on staking deposits and yield generated by their network — not on subscription fees. The program is FTC 70% Rule compliant. Commissions are paid in USDC on-chain within 5 minutes of qualification.

11. PROHIBITED ACTIVITIES

You agree not to use the Platform for money laundering, terrorism financing, or any illegal purpose; attempt to manipulate WVI scores; create multiple or proxy accounts; reverse engineer any part of the Platform; transmit viruses or harmful code; or make false claims about Wellex products or income potential.

12. INTELLECTUAL PROPERTY

All intellectual property rights in the Platform — including the Wellex brand, logo, WVI algorithm, AI Yield Engine, WellexVault smart contracts, and Living NFT design — are owned by or licensed to Calon Wealth Management Ltd. The "Emotional Mining" concept and protocol are trademark registered and patent pending. Users receive a limited, non-exclusive, non-transferable license for personal use only.

13. RISK DISCLOSURES

🚫 **Important Risk Notice:** DeFi and cryptocurrency investments carry significant risk. You may lose part or all of your deposited funds. Past yields are not indicative of future returns. Please read our full Risk Disclaimer before depositing funds.

14. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, the Company's total liability shall not exceed fees paid in the preceding 12 months. The Company is not liable for indirect, incidental, or consequential damages; losses from DeFi protocol failures; or losses due to user error or unauthorized account access.

15. INDEMNIFICATION

You agree to indemnify, defend, and hold harmless Calon Wealth Management Ltd, its directors, officers, and employees from any claims, damages, losses, and expenses arising from your use of the Platform, violation of these Terms, or infringement of any third-party rights.

16. TERMINATION

The Company may terminate or suspend your account immediately for violation of these Terms, fraudulent or illegal activity, non-payment, or failure to complete KYC/AML verification. Upon termination, funds in WellexVault will be returned after completing withdrawal processing and AML checks.

17. DISPUTE RESOLUTION

Disputes shall first be subject to good-faith negotiation for 30 days. Unresolved disputes are submitted to binding arbitration under the rules of the **London Court of International Arbitration (LCIA)**, conducted in English in London, England.

18. GOVERNING LAW

These Terms are governed by the laws of **England and Wales**. The courts of England and Wales have exclusive jurisdiction for matters not subject to arbitration.

19. CHANGES TO TERMS

Material changes will be communicated via email and Platform notification at least **30 days in advance**. Continued use after notice constitutes acceptance.

20. CONTACT INFORMATION

Calon Wealth Management Ltd

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General: info@wellex.io | Legal: legal@wellex.io | Support: support@wellex.io

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